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A Vicious Cycle: The Consequences of the American “War on Terror”

It can be argued that the events of September 11, 2001 were the turning point that defined the beginning of our current era. In response to the thousands of casualties inflicted across the Eastern Seaboard that day, the United States initiated a so-called “War on Terror” against international terrorism, alongside its perceived sponsors and allies (Goepner and Thrall 3). This course of action precipitated a devastating cycle of backlash and ensuing responses that can be seen as nothing short of an abject failure. In this essay, I argue that far from quelling the threat posed by extremists and defending American freedoms, the U.S’ actions have exacerbated the terrorist threat alongside fanning anti-Western sentiment, and have had a detrimental impact on civil liberties (Goepner and Thrall 2; Herman 79-80).

Supporters of the War on Terror often justify military interventions abroad and encroachments on domestic civil liberties by asserting that such actions saved lives and prevented further terrorist atrocities. However, terrorist attacks worldwide from 1970 to 2001 had a confirmed death toll of 152,334, whereas terrorist attacks from 2002 to 2020 have killed at least 327,014 people, a staggering loss of life more than double that of the 31 preceding years in just over half the time-span (Ritchie et al.). This surge in terrorist violence and casualties is attributable to foreign U.S military interventions and the resulting socioeconomic destabilization that followed. In Afghanistan, the U.S invasion that sought to oust Al-Qaeda from the nation and unseat the Taliban, which had provided sanctuary to the terrorist group, resulted in the displacement of many thousands of civilians to refugee

camps. Poor conditions and poverty that ran rampant in such camps were conducive to radicalization against the United States and West at large, which often resulted in these camps becoming hubs for extremist indoctrination and recruitment that ultimately resulted in the creation of waves of terrorists and the ensuing atrocities committed by them (Morris 192).

A specific facet of the American military strategy as part of its War on Terror was the use of armed drones in lieu of infantry soldiers to accomplish military objectives, a tactic that was first widely employed by President Barack Obama. This switch in tactics sought to minimize American casualties in Afghanistan and other nations, and ostensibly aimed to replace more discriminate tactics that resulted in numerous civilian casualties (Morris 193-194). However, their usage has in fact been quite discriminate, with non-combatants suffering far more from drone strikes than their intended combatant targets. Even with “precision” targeting, the lethal radius of effect for drone strikes was observed to be approximately 15 metres. It is highly likely that such a lethal radius would render drone strikes unacceptable for domestic counter-terrorism operations in locations such as schools, and yet the United States has repeatedly conducted drone strikes against targets located or otherwise thought to be located in such buildings in Afghanistan and other countries targeted by the U.S in their drone campaigns (Morris 194). These drone strikes have been observed to cause hatred and resentment from local populations towards the United States and the West at large. With little to no physical military presence or infrastructure available to conduct attacks against “on the ground”, the usage of armed drones merely diverts casualties incurred by the United States from its military to its civilian population at home and abroad (Morris 194-195). A notable example of an extremist being motivated by U.S foreign policy is Faisal Shahzad, the terrorist who attempted to detonate a car bomb in New York’s Times Square in 2010. He admitted before a Manhattan federal judge that he had planned the attack as revenge for the U.S military interventions in Iraq and Afghanistan, as well as the U.S’ use of drone

strikes (Boyle 1). In addition, a specific link has been observed between U.S drone strikes in Yemen and the numbers of Yemenis joining Al-Qaeda (Boyle 11).

In response to evidence that discredits the assertion that military intervention reduced the threat of terrorism, an advocate of the War on Terror may still argue that the interventions accomplished the goal of disrupting the operations of Al-Qaeda and brought democratic governance to Afghanistan and Iraq. Furthermore, they could claim that the security environment for the U.S and its allies was improved through the overthrow of hostile regimes. Many such arguments are often accompanied by jingoist rhetoric about exacting vengeance for the victims of terrorism on the home front (Lieberman and Skitka 2-4).

While it is true that United States military action did disrupt Al-Qaeda's operational capabilities and networks, such networks would eventually reconstitute in the form of ISIS, an organization that went beyond Al-Qaeda in its takeover of large swathes of territory, formation of a quasi-state, and establishment of networks and infrastructure from which atrocities were committed within its new borders and beyond (Goepner and Thrall 8; Brands and Feaver 7, 11, 31). Though Al-Qaeda perpetrated savage, indiscriminate acts of violence, ISIS went much further in its systematic, genocidal slaughter and subjugation of religious minorities such as its campaign of mass murder and genocidal rape against the Iraqi Yazidi population (Cheterian 1-2).

As for democratic governance, the achievement of democracy in Afghanistan was wiped away in August of 2021 with the successful Taliban counter-offensive and takeover of Kabul and most of Afghanistan; a monumental catastrophe for the United States' efforts in the country, and one that cost the United States \$2.313 trillion from the fiscal years 2001 to 2022 in military spending and attempts at socioeconomic development (Karcic; "Human and Budgetary Costs," 2021). In Iraq, a democracy was ostensibly established in the aftermath of the U.S invasion and toppling of Saddam Hussein's regime. However, Iraq's democratic institutions are severely impacted by a lack of stability and ethno-sectarian

strife, with ethnic and sectarian secessionist movements like those of the Kurds and Sunni Arabs and a political dynamic of sect-based majoritarian rule ripping apart the fabric of society and sparking fears of a bloody civil war (Alkifaey 116, 127-128, 185-187). In this context, asserting that the security environment in the region has somehow improved since 2001 is absurd.

Delving into the issue of justice and retribution for terrorism is an emotionally-charged topic; however the indiscriminate, colossal losses inflicted upon civilian populations as a result of the War on Terror are nothing but grotesquely disproportionate. One of most reputable scientific research projects aiming to ascertain the death toll from the Iraq War from 2003-2011 came up with an estimate of 461,000 war-related Iraqi fatalities in that time period, an estimate that is by now woefully undercounting the true death toll (Hagopian et al. 10). Meanwhile, the Costs of War project at Brown University's Watson Institute for International and Public Affairs has counted at least 70,418 direct war deaths amongst civilians in Afghanistan and Pakistan as of 2021 ("Human and Budgetary Costs," 2021). It is quite difficult to claim the moral high ground given these staggering fatality figures resulting from U.S foreign policy. There is no reasonable means to justify these losses or to assert that they are in line with exacting justice for terrorist atrocities given the sheer disproportionality of these casualties with those suffered on the American home front. That such casualties came despite the lack of tangible reductions in the terrorist threat and ultimately unleashed significant backlash and resentment against the United States and the West at large only underscores the monumental scale of the U.S' foreign policy failures post-9/11.

Beyond the strategic failure of the War on Terror in actually combating terrorism and preventing further bloodshed, the erosion of freedoms and civil liberties in response to terrorist atrocities has in fact provided America's enemies with a major victory. Groups like Al-Qaeda have succeeded in sowing discord and fear amongst the American government and society. There are several areas where these infringements on rights and freedoms is apparent.

First, there are warrant-less mass surveillance programs introduced by the Bush Administration in the wake of 9/11. For instance, the initial authorization provided by President George W. Bush regarding surveillance targeting terrorists allowed the National Security Agency (NSA) to conduct warrant-less surveillance on any communications where it could be concluded, on a “reasonable basis”, that at least one party to a particular communication was a member of Al-Qaeda or other affiliated organizations (Ku 650). While many details are still classified, it is understood that, using its newly authorized extraordinary surveillance powers, the NSA collaborated with various telecommunication companies to conduct warrant-less interceptions of domestic telephone and internet traffic on a significant scale (Ku 650). Such programs, and the legal opinions that sought to justify them, flagrantly violated the Fourth Amendment of the United States, which provides a fundamental right to be secure in their private domains and not have their privacy violated without reasonable cause (Ku 654). In fact, these programs went against the inherent spirit and intent of the U.S Constitution in its entirety, given that one of the Constitution’s core purposes was to limit government powers and provide safeguards against government overreach and tyranny (Ku 659). The mass surveillance projects initiated by the Bush Administration would eventually expand in scope into indiscriminate monitoring programs such as the NSA’s PRISM program, which went as far as to integrate directly into the servers of numerous major internet companies in order to conduct live monitoring of things such as search queries, video chats, and file transfers (Cohen 19-20). By enacting such far-reaching, indiscriminate surveillance programs, the United States government has capitulated to the aims of the terrorists by instilling a sense of fear and uncertainty within its citizenry that is damaging enough to have had observable mental health impacts (Rogers).

Another area where the United States government’s response to 9/11 demonstrated the success of Al-Qaeda in their goal of bringing fear and terror to the U.S heartland was the discarding of the fundamental rights of those suspected of wrongdoing. A particularly grim manner in which this

manifested was the authorization and usage under the Bush Administration of so-called “enhanced interrogation techniques” and “extraordinary renditions”, more accurately known as torture and abductions, respectively (Chwastiak 493-494). The usage of torture and abductions by the United States was conducted ostensibly for the purposes of extracting information from detainees that could be used to stop further terrorist attacks and safeguard national security. To this end, the United States determined that the Geneva Convention on Prisoners of War was inapplicable in its fight against Al-Qaeda, thus opening the path to grotesque human rights abuses (Chwastiak 494). At the American-run prison in Abu Ghraib, Iraq, U.S interrogators engaged in a litany of sadistic methods to try to “soften up” detainees, who often were completely blameless and had been wrongfully captured. Amongst the most barbaric practices included the “breaking [of] chemical lights and pouring the phosphoric liquid on detainees”, sexual assault, and rape of both male and female prisoners (Lazreg 268-269). It appears likely that such torturous acts were often driven by the impunity and power imbalance that interrogators enjoyed as part of their occupational duties (Lazreg 269). Abductions and torture were normalized to the point of having set routines and bureaucratic processes associated with them, so as to streamline the process and make it appear relatively mundane. Intake procedures, comprising the initial abduction and processing of victims, “interrogation techniques”, and the further transport of victims were performed in accordance with a standardized routine (Chwastiak 503-504). Such “bureaucratization” of these processes has been compared to the organized, efficient operations of the Nazi regime of Germany in their genocidal campaigns leading up to and during World War II (Chwastiak 504). Such actions taken by the United States would have been considered unthinkable for the most part before 9/11, but have been normalized through a climate of fear and a perceived need to combat the terrorist threat by any means necessary (Chwastiak 505; Lazreg 261-263). Instead of sticking to the ideals of liberty and freedom, and showing resolve by not allowing terrorism to impact the values Americans cherish dearly, the United States government provided the terrorists with a major

victory with its encroachments on inherent freedoms and rights, which in turn was weaponized by terrorists in the form of propaganda and recruitment material that served to radicalize waves of recruits that would go on to perpetrate additional atrocities; setting off a cycle of terror and suffering (Hart and Thompson 145-146).

Despite all this, there remain numerous defenders of the United States' encroachments on civil liberties and human rights. There is one primary assertion that such people tend to make when defending the mass surveillance, "enhanced interrogation techniques", and "extraordinary renditions"; which is that such programs succeeded in their goals. They make the claim that such programs improved national security and helped keep the public safe from terrorist atrocities. In the case of surveillance programs, they assert that indiscriminate spying programs helped catch terrorists who otherwise would have remained undetected and helped gather valuable intelligence towards the global fight against terrorism. A similar argument is also made to justify the program of abducting and subsequently torturing suspected terrorists in that such "enhanced interrogation techniques" were vital to "crack" detainees and gain intelligence, given it was understood that members of groups such as Al-Qaeda had built up psychological defences against interrogation (Chwastiak 495). Additionally, it is asserted international law did not apply in the fight against terrorism, given the asymmetrical nature of terrorism. Such a line of reasoning presents the idea that the fight against terrorism constituted a so-called "new war" with different, more permissive rules of engagement and conduct (Lazreg 261-263).

Unfortunately, such gross violations of civil liberties did little to nothing to protect the public and aid national security. Attacks such as the Boston Marathon Bombing in 2013 and the shooting rampage at Fort Hood, Texas in 2009 demonstrate the inefficacy of mass surveillance. In the case of the Boston bombers, NSA surveillance dragnets failed to detect them whatsoever; whereas targeted monitoring from the Russian government, which had attempted to warn the United States, had done so (Granick 77-78). The Fort Hood attack demonstrated that even with actionable intelligence being

provided, this alone was not enough for relevant agencies to intervene and prevent bloodshed (Granick 80). In fact, during the publicly known period of indiscriminate domestic telephone interceptions between 2001 and 2015, not one terrorist plot was uncovered against the United States using such measures. The same was true for the mass internet surveillance dragnets officially active from 2001 to 2011 (Granick 80-81).

A similar trend emerges when discussing the effectiveness of “extraordinary renditions” and “enhanced interrogation techniques”. Many years before 9/11, in 1989, the Central Intelligence Agency (CIA) testified before the United States Senate that torturous interrogation techniques did not produce any meaningful intelligence and instead produced false information. This criticism that the use of torture was not only ineffective but was in fact damaging for U.S national security remained consistent among both researchers and counter-terrorism officials, and was reaffirmed by the U.S Senate Select Committee on Intelligence in 2014 when they concluded that the usage of “extraordinary renditions” and “enhanced interrogation techniques” had yielded no information that improved national security (Chwastiak 506). Despite these warnings and evidence that contradicted the efficacy of these barbaric methods, the U.S government continued to publicly claim that such programs were effective in their goal of obtaining meaningful intelligence to combat terrorism, extensively spreading falsehoods and attempting to hide the sheer brutality of the methods that were actually being employed (Chwastiak 500; Herman 82).

As for point about the circumstances that the United States found itself in providing an excuse for it to act in the way it did to combat terrorism, this reasoning also falls flat. Detainees at facilities such as Abu Ghraib had rights that they were entitled to under the Geneva Conventions flagrantly and repeatedly violated (Michaels 37-38). This was despite the fact that the United States was a party to all four of the Geneva Conventions and had publicly indicated adherence with the “spirit” of the Geneva Conventions; albeit in accordance with the principle of “military necessity” (Michaels 36-37). Even if

assuming that the detainees at hand were indeed Taliban and Al-Qaeda fighters guilty of waging war against the United States and its allies, the United States has an obligation to conduct itself in accordance with international law, especially if it would like to consider itself as an arbiter and beacon of freedom and democratic values. Taliban fighters that were captured had a right to be treated as prisoners of war and enjoy the associated protections as soldiers of a state engaging in open warfare, while members of Al-Qaeda would have enjoyed broader protections intended for those held in the course of an international armed conflict (Michaels 38). Beyond the violations of the Geneva Conventions, the United States' treatment of detainees also contradicted protections afforded under the United Nations Convention Against Torture (UNCAT). This was through extensive efforts to assert that torture was not only permissible under the UNCAT, but that it was permissible up to the point that it inflicted pain up to the point where it would be comparable with the suffering associated with organ failure or death (Michaels 39-42). Ultimately, the characterization of the conflict as being part of a "new war" was done expressly for the purposes of trying to justify torture and other inhumane treatment, had no basis in international law, and had no motivation beyond that single, unjust goal. (Michaels 35-36, 45-47). Thus, all things considered, the United States' utter disregard for civil liberties was not driven by sheer necessity. Rather, such abuses occurred because the U.S government could get away with them (Lazreg 261).

In closing, it is apparent that the United States' so-called "War on Terror" was a catastrophic failure. Fatalities from terrorism drastically increased post-9/11, something that is attributable to United States foreign policy in nations such as Afghanistan, Iraq, Pakistan, and Yemen. Sustained military interventions resulted in large displacements of individuals and significant numbers of civilian casualties, leading to radicalization and further acts of terrorism. Despite claims to the contrary, the means the United States took to combat Al-Qaeda and other affiliated groups would eventually lead to the rise of ISIS, a more barbaric and dangerous organization. Furthermore, the mission of

democratizing Afghanistan and Iraq has panned out to be a failure, with the Taliban taking over in the former nation and sectarian strife bringing Iraq to the verge of civil war. Additionally, the United States capitulated to the desires of the terrorists by discarding their adherence to civil liberties and human rights, which was demonstrated by their mass surveillance policies and adoption of torture and kidnapping. Such actions eroded confidence in our democratic institutions, and provided terrorists with a propaganda coup. It is imperative that, given the sheer scale of these failures, the United States and its allies learn from their mistakes by adopting a more productive, principled strategy going forward to combat terrorism that doesn't compromise on American values and inflict catastrophic suffering on innocent noncombatants.

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